

		Plaintiff cites to <i>Bowden v. Robinson</i> (1977) 67 Cal.App.3d 705 in support of the opposite conclusion. In <i>Bowden</i>, the Court of Appeal held that Corporations Code section 25510, which is identical to section 31306 of the CFIL, should be interpreted as supplementing rather than displacing common law fraud. (67 Cal.App.3d at p. 716.) As the Court previously held in overruling the Demurrer filed by some of the Defendants, given that section 31306 and section 25510 are identical, there is no reason why the reasoning in <i>Bowden</i> should not apply here. Further, that reasoning is sound. The <i>Bowden</i> court noted that Corporations Code section 25006 defined "fraud," "deceit," and "defraud" as not being limited to common law fraud or deceit and held that sections 25006 and 25510 read together "express a clear legislative intent . . . to supplement common law causes of action, not to repudiate them." (Id. at p.716.) Here, the CFIL also has a virtually identical provision in section 31012, which provides: " 'Fraud' and 'deceit' are not limited to common law fraud or deceit." Pursuant to <i>Bowden</i>, sections 31306 and 31012 read together express a legislative intent to supplement common law causes of action rather than repudiate them. While <i>Samica</i> reached the opposite conclusion, it is not controlling on this Court. Thus, the Court finds that the causes of action are not preempted. Because the Court finds no preemption, it need not reach the arguments regarding retroactivity of the amended section 31306 or whether Plaintiff's causes of action are based on post-sale misrepresentations. In accordance with the above, the Motion for Summary Adjudication is DENIED. <i>Moving party to give notice.</i>
110	Daniels vs. Balderas, 25-01515105	Defendants Guillermo E. Balderas (sued as Ernie Balderas) ("Balderas"), Angelica Garcia (sued as Angelique Garcia) ("Garcia"), Vicente Lopez, Yesenia Mendoza ("Mendoza"), and Carlos Portillo (sued as Carlos Porpillo) (collectively, "Superior Court Defendants") seek an order sustaining their demurrer to the first, second, third, fourth, fifth, and sixth causes of action of the Complaint filed by Plaintiff Dominique Daniels, based on failure to state sufficient facts to constitute a cause of action. (ROA 109) Defendants also seek to strike Page 52, Prayer for Relief Paragraph 5, which provides: "Punitive damages according to proof." (ROA 104) As a threshold matter, before filing a demurrer, the demurring party must meet and confer in person, by video conference, or by telephone with the party who filed the pleading to attempt to reach an agreement that would

		resolve the objections to the pleading and obviate the need for filing the demurrer. [CCP § 430.41] Likewise, a party must meet and confer before filing a motion to strike. [CCP §§ 435.5] It is apparent that no meet and confer has taken place as to the substance of the motions as required by CCP §430.41 and CCP §435.5. Motions are continued to August 20, 2026 at 1:30 p.m. for counsel for Moving Defendants and Plaintiff to meet and confer pursuant to CCP §430.41. Nine (9) Court days prior to the continued hearing date, Defense counsel is ordered to file a supplemental declaration establishing the results of the meet and confer. The Court further notes that the use of hyperlinks is inappropriate and will be disregarded. The Case Management Conference is also continued to August 20, 2026 at 1:30 p.m. <i>Clerk to give notice.</i>
111	LUC vs. MAI, 26-01568185	Defendants Jimmy Mai and Tiffany Mai ("Defendants") move for an order expunging the Notice of Pendency of Action filed by plaintiff Mimi Diem Luc ("Plaintiff") and awarding them attorney's fees and costs against Plaintiff. "A lis pendens—also called a notice of pendency of action—is a document filed with a county recorder that provides constructive notice of a pending lawsuit affecting the real property described in the notice. [Citations.] Any party may record a lis pendens when the lawsuit involves a 'real property claim.' " (<i>Shoker v. Superior Court of Alameda County</i> (2022) 81 Cal.App.5th 271, 275.) "At any time after notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice." (Code Civ. Proc., § 405.30.) "In proceedings under this chapter, the court shall order the notice expunged if the court finds that the pleading on which the notice is based does not contain a real property claim." (Code Civ. Proc., § 405.31.) " 'Real property claim' means the cause or causes of action in a pleading which would, if meritorious, affect (a) title to, or the right to possession of, specific real property or (b) the use of an easement identified in the pleading, other than an easement obtained pursuant to statute by any regulated public utility." (Code Civ. Proc., § 405.4.) A notice of lis pendens shall also be expunged if the claimant has not established by a preponderance of the evidence the